

AFFIDAVIT OF STATUS AND NOTICE OF DISTRESS UNDER GEORGIA LAW]

Part 1: Declaration of Status and Rebuttal of Presumptions

*** Affirmation of Living Status & Fundamental Rights:**

- * This Affiant/Declarant is one of "We the people of Georgia" invoking the protection and guidance of Almighty God to secure the enjoyment of liberty [cite: Georgia Constitution, Preamble].
- * Affiant is a living, breathing, sentient man/woman, endowed with natural and inalienable rights, including the right to life, liberty, and property, which shall not be deprived except by due process of law [cite: Georgia Constitution, Art. I, Sec. I, Para I].
- * Protection to person and property is the paramount duty of government [cite: Georgia Constitution, Art. I, Sec. I, Para II].

* Affiant explicitly denies being, or ever having been, solely a statutory "Person" as defined in O.C.G.A. § 45-10-20(8) (which includes corporations, partnerships, legal entities, etc.), a legal fiction, U.S. Person (statutory sense), surety for such entities, or similar construct [cite: Georgia Code § 45-10-20]. Affiant distinguishes this statutory definition from the living man/woman possessing inherent rights.

- * Affiant had a Nativity upon the Soil, not a corporate "berth" date [cite: 72-73, 80-83, 125-126, 133, 135-136].

*** Rebuttal of Corporate/Jurisdictional Presumption:**

- * It is acknowledged that presumption may prevail unless rebutted [cite: 1-4, 150]. Under Georgia law, certain legal presumptions may be rebutted by proof [cite: Georgia Code § 24-14-21].
- * There is often a presumption that a responding party is a Corporation or statutory "Person" subject to certain jurisdictions.
- * Failure to deny such status under oath can lead to the court finding it as fact (similar principles as FRCP 52) [cite: 7, 9-10, 13, 15-18, 74-75, 127-128, 150-158, 183-195].
- * Therefore, Affiant explicitly denies under oath any allegation or presumption of being solely a statutory "Person" or corporation subject to the alleged jurisdiction, rebutting such presumption pursuant to O.C.G.A. § 24-14-21 [cite: Georgia Code § 24-14-21].

*** Sovereign Capacity:**

- * Sovereignty ultimately resides with "We the people" [cite: Georgia Constitution, Preamble; Chisholm v. Georgia discussion on popular sovereignty].
- * Affiant acts in a sovereign capacity as one of the people of Georgia, asserting rights protected by the Georgia Constitution.

*** Denial of Specific Jurisdictional Hooks:**

- * Affiant is NOT subject to legislation or jurisdiction improperly applied outside the bounds of the Georgia Constitution and the Constitution for the united States of America.
- * Affiant invokes the protection due to citizens of the United States resident in Georgia, as mandated by the Georgia Constitution [cite: Georgia Constitution, Art. I, Sec. I, Para VII].

*** Revocations:**

- * Affiant revokes and cancels all signatures on forms potentially granting jurisdiction inconsistent with Affiant's declared status and rights under the Georgia Constitution [cite: 52-53, 105-106].
- * Affiant revokes, rescinds, and makes void ab initio all powers of attorney (in fact or presumption) pertaining to Affiant held by government/corporate entities inconsistent with this declaration [cite: 52-54, 105-107].
- * Affiant cancels any presumed election inconsistent with status as one of the sovereign people of Georgia [cite: 56-58, 109-111].

Part 2: Governing Principles and Maxims under Georgia Law

*** Truth and Commerce:**

- * Truth is sovereign in commerce. An unrebutted affidavit stands as truth and judgment in commerce. In libel actions under Georgia law, truth is a defense [cite: Georgia Constitution, Art. I, Sec. I, Para VI].

*** Remedy and Redress:**

- * All persons have the right to due process [cite: Georgia Constitution, Art. I, Sec. I, Para I] and equal protection [cite: Georgia Constitution, Art. I, Sec. I, Para II].
- * The people have the right to apply by petition or remonstrance to those vested with government powers for redress of grievances [cite: Georgia Constitution, Art. I, Sec. I, Para IX].

*** Bonding and Oath Requirement for Officials:**

- * Public officials in Georgia take an oath of office [cite: Albany Code Sec. 2-130 example; likely broader statutes exist in Title 45 O.C.G.A.].
- * Certain officials, like Probate Judges, are explicitly held accountable on their official bonds [cite: Georgia Code § 29-6-8]. The principle of bonding for public officials exists in Georgia law [cite: Albany Code Sec. 2-131 example; Georgia Code § 29-6-8].

- * Failure to provide bonding information may constitute grounds for a personal lien.

*** Accountability and Liability:**

- * Officials acting outside their oath, impairing rights protected by the Georgia Constitution (e.g., due process, property rights, obligation of contract [cite: Georgia Constitution, Art. I, Sec. I, Para I, X]), become personally liable [cite: 215, 195-196].
- * Judicial non-jury commercial judgments must be properly supported. Georgia Constitution guarantees trial by jury in many cases [cite: Georgia Constitution, Art. I, Sec. I, Para XI].

*** Notice to agent is notice to principal, and vice versa.**

Part 3: Specific Allegations and Violations under Georgia Law (To be filled with specific facts)
(Adapt this section using specific facts, referencing Georgia Constitution Article I paragraphs and relevant O.C.G.A. sections.)

*** Allegation 1: (e.g., Describe denial of rights)**

- * Constitutional/Legal Violations: (e.g., Violation of Ga. Const. Art. I, Sec. I, Para I (Due Process); Para II (Equal Protection); Para X (Obligation of Contract))

*** Allegation 2: (e.g., Describe unlawful distress of property/denial of process)**

- * Constitutional/Legal Violations: (e.g., Violation of Ga. Const. Art. I, Sec. I, Para I (Due Process/Property); Para XIII (Unreasonable Seizure))

*** Allegation 3: (e.g., Describe actions taken under color of law without authority/outside oath)**

- * Constitutional/Legal Violations: (e.g., Violation of Ga. Const. Art. I, Sec. I, Para II (Paramount duty of govt.); violation of oath of office (referencing specific statute if known, or general principle))

*** (Continue as needed)**

Part 4: Demand for Remedy and Distress under Georgia Law

- * Ledger/True Bill: Quantify damages based on violations detailed in Part 3, citing violations of specific Georgia Constitutional rights and potentially federal statutes like 18 USC 241/242 if applicable [cite: 237-241, 274].
 - * Surety: Identify the surety as the official bonds of the named Georgia officials/lien debtors, pursuant to Georgia law requiring such bonds and accountability [cite: Georgia Code § 29-6-8; general principle]. State claim attaches to personal assets if bonds are insufficient.
- * Demand: Make demand upon named individuals for payment of the sum certain.

Part 5: Verification and Conclusion

- * Affiant's Declaration: Standard declaration of truth, firsthand knowledge, competence, under unlimited liability.
- * Signature: Affiant's signature, name printed, "All rights reserved under Georgia and U.S. Constitutions," date.
- * Notary: